BY ORDER OF THE COMMANDER UNITED STATES AIR FORCES IN EUROPE (USAFE)

UNITED STATES AIR FORCES IN EUROPE INSTRUCTION 51-710), ARMY IN EUROPE REGULATION 550-33, COMMANDER UNITED STATES NAVAL FORCES EUROPE/UNITED STATES NAVAL FORCES AFRICA/UNITED STATES SIXTH FLEET INSTRUCTION 5840.17C

4 OCTOBER 2016

Law

LOCAL CURRENCY, MOTOR VEHICLES AND RELATED PRIVILEGES, AND IMMIGRATION STATUS. REPORTING REQUIREMENTS FOR U.S. PERSONNEL IN THE UNITED KINGDOM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements AFPD 51-7, International Law. It establishes prohibitions concerning the disposition of duty-free personal property, the possession of excess quantities of tobacco, liquor and gasoline, and the acquisition and disposition of local currency except as provided in this regulation. It outlines requirements concerning the registration of firearms, and licensing of drivers and provides a basis for punitive action under the Uniform Code of Military Justice (UCMJ) for U.S. Air Force military personnel or administrative action, to include possible revocation of all duty-free privileges for military and civilian personnel. It also outlines the requirements to report immigration status changes for dependents and other non-military personnel that are deemed exempt from immigration control under the law of the United Kingdom. This regulation applies to United States Air Force, Army, Navy, Marine Corps and Air

National Guard Units of the United States, and personnel according to paragraph 1.1. This publication also applies to all Air Force Reserve Command (AFRC) Units and AFRC personnel present in the U.K. to perform official duties. Certain provisions of this instruction are punitive. Violations of the specific prohibitions in paragraphs and related subparagraphs 2.2., 3.1.1., 3.2.1., 3.3., 4.1., 4.2.1., 4.2.2., 4.2.4., the last sentence of 6.1.2., 6.1.3., 6.2.1., and 6.2.4. of this instruction by military personnel may result in prosecution under Article 92(1) and, or Article 134 of the Uniform Code of Military Justice (UCMJ). Civilian personnel are subject to disciplinary action (including loss of logistic support privileges) for violations of these paragraphs according to applicable service regulations on civilian misconduct and adverse administrative actions. Civilians may also be subject to criminal prosecution by the host nation for violation of host nation laws. Supplements will not lessen the requirements nor change the basic content or intent of this instruction. The authorities to waive requirements in this publication are identified with a Tier number (T-0, T-1, T-2, T-3) following the compliance statement. See AFI 33-360, Publications and Forms Management, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items.

Process supplements in accordance with (IAW) AFI 33-360, Publications and Forms Management. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using Air Force (AF) Form 847, Recommendation for Change of Publication; route AF Forms 847 from the field through the appropriate functional's chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, Management of Records, and disposed of in accordance with the Air Force Records Disposition Schedule (RDS).

SUMMARY OF CHANGES

A new section has been added to satisfy the notification requirements to the U.K. Government set forth in the Memorandum of Understanding Between the Government of the United Kingdom of Great Britain and Northern Ireland and The Government of the United States of America concerning the Immigration Control of Dependents of Military Visiting Forces, dated 3 November 2015. Additionally, the title of the Instruction has been expanded to better reflect its content. This instruction supersedes all previous regulations on this topic.

1. General.

1.1. Applicability. This directive applies to all U.S. military personnel, Department of Defense civilian personnel, and their dependents in the U.K. U.S. military personnel and their dependents assigned or attached to U.S. diplomatic and consular offices in the U.K. also will be governed by directives published by their chief of diplomatic mission or consular office.

1.2. Background. The importation and sale of personal property and the acquisition, importation, operation, and sale of motor vehicles is controlled by the North Atlantic Treaty Organization, Status of Forces Agreement (NATO SOFA), bilateral implementing agreements, applicable local law, and U.S. military directives. The reporting of entry into the U.K., permanent departure from the U.K. or loss of exemption from immigration control status of those U.S. military dependents who are exempt from immigration control is

required per the Memorandum of Understanding Between the Government of the United Kingdom of Great Britain and Northern Ireland and The Government of the United States of America concerning the Immigration Control of Dependents of Military Visiting Forces, dated 3 November 2015.

1.3. Definition of Terms. As referred to in this publication, the following terms shall have the meaning indicated:

1.3.1. Authorized Person. Those personnel and their dependents listed in paragraph 1.1. who are stationed in or are on official duty in the U.K. unless otherwise specifically excluded by a provision of this regulation.

1.3.2. Authorized Agencies. Activities operated and controlled by the U.S. Forces including non-appropriated fund activities.

1.3.3. Authorized Banks. Financial institutions, including military banking facilities, authorized by the U.K. to exchange currency.

1.3.4. Military Finance Offices. Accounting and finance offices, including disbursing offices and disbursing agent offices, operated by the U.S. military forces.

1.3.5. U.S. dollars or Dollar Instruments. Lawful currency of the U.S. including paper and coins, U.S. Treasury checks, personal checks, traveler's checks, bank drafts, money orders, postal orders, or any other negotiable instruments expressed in U.S. dollar amounts.

1.3.6. U.K. sterling or Sterling Instruments. Lawful currency of the U.K. including paper and coins, personal checks, money orders, or any other negotiable instruments expressed in U.K. pound sterling amounts or lesser amounts of lawful currency of the U.K.

1.3.7. United Kingdom. The United Kingdom of Great Britain and Northern Ireland (including England, Scotland and Wales), herein abbreviated as U.K.

1.4. Implementation.

1.4.1. The Director, USAFE-U.K., Detachment 1 serves as the U.S. Country Representative for the U.K. In this capacity, he is responsible for reviewing the provisions of this directive annually. Recommended changes to this directive will be submitted to HQ USAFE/JAI after coordination with other local U.S. service commanders and the Chief of the U.S. Diplomatic Mission to the U.K.

1.4.2. U.S. military commanders are authorized to issue supplementary instructions when considered necessary or desirable to disseminate more detailed guidance or to impose additional restrictions. No supplement may be issued which will relax restrictions or procedures of this regulation. In turn, nothing in this regulation is intended to conflict with or relax policies and procedures established in directives, which may be applicable to respective members of the Services. Supplements to this regulation should be coordinated among senior component commanders in country.

2. Currency.

2.1. Medium of Exchange:

2.1.1. The medium of exchange for all transactions shall be in either U.K. sterling currency and U.K. sterling instruments or U.S. dollar currency and U.S. dollar instruments.

2.1.2. Non-appropriated fund clubs and messes may accept U.K. sterling currency in payment for meals, beverages and service charges only, under directives prescribed by the senior U.S. commander in the U.K. having responsibility for the activity.

2.2. Currency Exchange.

2.2.1. Except insofar as U.K. currency may be paid out to authorized personnel as change in the course of transactions conducted by them in dollar currency or instruments, for example, with automobile or other insurance agencies, shops, department stores, hotels, landlords, public houses, and taxi operators, U.S. dollar currency or dollar instruments will be exchanged into U.K. sterling currency by authorized activities only as indicated below.

2.2.1.1. For Authorized Personnel. Only by military finance offices, military banking facilities, conversion points operated by authorized agencies, and by U.K. commercial banks.

2.2.1.2. For Non-appropriated Fund Activities. Non-appropriated fund facilities will secure all U.K. sterling currency from military banking facilities (MBF). When there is no established MBF on the installation, such currency can be secured from military finance offices. Emergency requirements can be satisfied from military finance offices only if MBFs cannot meet such emergency needs.

2.2.2. U.K. sterling Currency may be exchanged into U.S. dollar currency or U.S. dollar instruments only under the following conditions:

2.2.2.1. For Authorized Personnel Traveling on Temporary Duty Orders at Government Expense when departing the U.K. U.K. sterling currency may be repurchased by military finance offices if the sterling currency was originally purchased from a military finance office. Amounts repurchased must be reasonable, taking into account the duration of time in the country and normal living expenses, and may not in any case exceed 100 pounds sterling per individual. A prerequisite for the repurchase of U.K. sterling currency is display of competent travel orders.

2.2.2.2. For Personnel Afloat. Upon returning afloat, an individual may request the disbursing officer to exchange U.K. sterling currency into U.S. dollar currency. The exchange shall not exceed the amount of sterling currency purchased before going ashore, as evidenced by the disbursing officer's records.

2.2.2.3. For Authorized Personnel Who Are Departing the U.K. on Permanent Reassignment or in a "Home Leave and Return" Order Status. Military finance offices are authorized to exchange an amount not to exceed the equivalent of the individual's total salary and allowances paid at the duty station for 2 biweekly pay periods or 1 month's pay (depending on the procedures under which the individual is paid) or l00 pounds sterling per traveler (100 pounds for the authorized person and 100 pounds for each dependent traveling with the authorized person), whichever is the lesser amount.

2.2.2.4. For Dependents of DOD Personnel When Ordered to Safehaven Area Under Emergency Evacuation. Military finance offices are authorized to convert foreign currency into U.S. dollar currency, in the amounts which the finance officer considers reasonable, for dependents evacuated to the U.K. as a safe haven. There are no restrictions on the type or kind of foreign currency which may be exchanged under these conditions.

2.2.3. These restrictions do not preclude authorized personnel from exchanging U.K. sterling currency or sterling instruments derived from legitimate business transactions (property sales, insurance settlements, refunds. etc.) into U.S. dollar currency or dollar instruments through U.K. commercial banking channels. When requested, military banking facilities will assist authorized personnel in obtaining conversion of such sterling into U.S. dollar currency or dollar instruments.

2.2.4. Except as provided by 2.2.2.4. above, military finance offices are prohibited from exchanging any currency other than U.S. dollar s or U.K. sterling. Authorized personnel may obtain or dispose of foreign currencies other than U.K. sterling through authorized commercial banks and authorized travel agents.

2.3. Import and Export of Currency.

2.3.1. U.S. dollar currency and U.K. sterling currency or sterling instruments may not be imported into or exported from the U.K. except as authorized by laws and regulation of the Government of the U.K.

3. Personal Property.

3.1. Importation of Household Goods and Baggage.

3.1.1. Authorized persons may import household goods and baggage free of customs duty, providing it is for the sole use of the authorized person or family members.

3.1.2. The importation will be made under the provisions of applicable service directives. The authorized person will personally execute DD Form 1434, United Kingdom (U.K.) Customs Declaration for the Importation of Personal Effects of U. S. Forces/Civilian Personnel on Duty in the U.K. This form will be used only for personal property (household goods and unaccompanied baggage) imported into the U.K. in connection with a permanent change of station.

3.2. Sale of Personal Property.

3.2.1. An authorized person or agency shall not sell, barter, mortgage or transfer personal property imported into the United Kingdom free of import duty or purchased or acquired free of purchase tax to non-authorized persons or agencies save to the extent that such transactions are authorized by agreement with HM Revenue & Customs.

3.2.2. In disposing of personal property, regardless of origin, undignified sales practices such as auctions or "fire sales" and the advertising thereof will be avoided.

3.3. Exportation of Personal Property.

3.3.1. Personal property imported into the U.K. free of excise duty or acquired free of purchase tax (from an exchange or other facility having excise or purchase tax exemptions), will be exported from the U.K. upon termination of the authorized person's

duty in the U.K. unless it earlier has been sold, donated, or otherwise transferred to an authorized person or activity or in accordance with Paragraph 3.2.1.

3.3.2. Personal property will not be abandoned in the U.K. except as authorized by U.K. law. For more information on personal property visit the on-line DoD Personal Property Consignment Instruction Guide for the United Kingdom at the following link: **https://tops.ppcigweb.sddc.army.mil/ppcig/query/countryInstruction.do?countryCode=U.K**.

4. Control of Firearms.

4.1. Importation and Registration of Firearms.

4.1.1. Because of the prohibition of certain weapons (which may subject weapons to confiscation and destruction) and the severe control of all others as well as the inevitable expenses involved, it is not recommended that privately owned firearms be imported into the United Kingdom.

4.1.2. All firearms (except low powered Air Weapons – see para 4.1.4 and 4.1.5) are either restricted or prohibited at importation. Restricted firearms can only be imported if the required paperwork is presented to Customs at the time of importation. Depending on the firearm, the paperwork will be either a current and valid Firearms Certificate or Shotgun Certificate issued by the U.K. police. Prohibited firearms cannot be imported nor can they be transported in the U.K. other than by those specifically authorized by the Home Office. Examples of prohibited firearms include all handguns, automatic and disguised firearms and most semi-automatic (self-loading) firearms. Full details of the make and model of the firearm will be required in order to determine whether it can be imported and if so, what paperwork will be required. Please refer to the DoD Consignment Instruction Guide for the United Kingdom (link at para 3.3.2) for additional guidance.

4.1.2.1. Deactivated Firearms. . Firearms that have been deactivated in accordance with European Union specifications and bear the appropriate deactivation proof marks may be imported only if a U.K. Import License has been obtained. Firearms deactivated or ‘de-militarized’ outside of the European Union / U.K. and/or those not bearing European Union deactivation proof marks are to be treated as live firearms.

4.1.2.2. Some parts of firearms are subject to the same restrictions and prohibitions as the firearms they are intended for, “e.g.” Barrels, Breeches, Frames, Receivers, Silencers, Flash Hiders etc.

4.1.3. Realistic Imitation Firearm (RIF). RIFs include any Airsoft Gun, Paintball Gun, toy, model, replica or decorative item which resembles a firearm. Exceptions to this rule include items which are brightly colored or transparent or measure less than 38mm in height by 70mm in length or imitate any type of pre-1870 firearm design. RIFs may only be imported when the importer can provide evidence that the item will be used for an approved activity. As the vast majority of RIFs encountered are either Airsoft Guns or Paintball Guns, the most likely evidence required is proof of membership of a U.K. Airsoft or Paintball club.

4.1.4. Air Weapons – Air Rifles & Air Pistols. Air Weapons are firearms. Air Weapons are powered by compressed air via a spring/piston, gas ram, pre-charged air bottle etc. or CO2 capsules. They fire metallic ammunition, usually pellets or spherical 'BBs'. The most common calibers are .177 and .22 although .20, .25 and other calibers might be encountered. Although Air Weapons are firearms, they are not restricted at importation if they are below the U.K. muzzle energy limits:

4.1.4.1. Air Rifles—12 foot/pounds (12ft/lbs)

4.1.4.2. Air Pistols—6 foot/pounds (6ft/lbs)

4.1.5. Airsoft Guns. Airsoft Guns are not powerful enough to be classed as Air Weapons or firearms. They are powered by electric motors, compressed air or CO2 capsules. They fire plastic spherical 'BBs'. The most common caliber is 6mm although 8mm might be encountered. Unless they are brightly colored or made of transparent material, Airsoft Guns are very likely to be Realistic Imitation Firearms (RIFs) – see para 4.1.3.

4.1.6. A person wishing to import a permitted firearm and a relevant Firearms or Shotgun Certificate has not yet been procured, the person entering the U.K. must deposit any firearms, which may require Firearms, or Shotgun Certificates with the first customs officer encountered. The owner should obtain a receipt, which describes the firearms and identifies the Customs Office. Normally, customs officials may detain for inspection personal property shipments containing firearms. If the person fails to obtain the necessary certificates, they will be responsible to find an authorized carrier and to send the firearm to the United States. Obtaining certificates involves a thorough vetting process and the application process will normally involve two references for verification. Shipment can be very expensive. In addition, there is always a risk that the firearm could be seized or destroyed without compensation.

4.1.7. Upon arrival at a permanent duty station, the firearms owner must obtain approval of the unit commander for the acquisition of firearms and, if appropriate, ammunition. Thereafter the owner will present such approval to the local U.K. police authorities as part of the process to receive the appropriate Shotgun/Firearm Certificate.

4.2. Exportation of Firearms.

4.2.1. No firearms or ammunition may be taken outside the U.K. either permanently or temporarily, unless an export license is obtained.

4.2.1.1. When exporting outside the EU, a valid U.K. Firearms Certificate or Shotgun Certificate listing the items wanting to be exported, or a Specific Individual Export License (SIEL) is required. The SIEL may be obtained from the Export Control Organization at the Department of Business, Innovation & Skills. Applications are made on line at **www.spire.bis.gov.uk/spire/fox/espire/LOGIN/login**.

4.2.1.2. When exporting within the EU, a valid U.K. Firearms Certificate or Shotgun Certificate listing the items to be exported and either a European Firearms Pass issued by the local Police Firearms Licensing Unit or a Specific Individual Export License is required. Applications are made on line at **www.spire.bis.gov.uk/spire/fox/espire/LOGIN/login**

4.2.2. If firearms are to be included in personal property shipments, the export license must be presented to the removal agent before the actual packing. If carried with personal baggage, firearms must be presented to appropriate U.K. customs authorities along with the proper document.

4.2.3. Any individual who takes firearms or ammunition outside the U.K. temporarily will, in addition to the requirements of this instruction, ensure compliance with the laws of the country into which the firearm is taken.

4.2.4. One who takes firearms from the U.K. on permanent change of station will, in addition to fulfilling the above applicable requirements, notify the local U.K. police and the Security Forces Pass and Registration Office of such removal.

4.2.5. The Gun Control Act of 1968 (Public Law 90-618) imposed very strict requirements concerning introduction of privately owned firearms and ammunition into the United States. These restrictions are applicable to all military and civilian personnel serving with the Armed Forces overseas. As a general rule, any persons subject to this regulation who intend to ship or otherwise introduce privately owned firearms or ammunition into the United States must first obtain either a certificate from their commanding officer or a permit from the U.S. Treasury Department, whichever is appropriate. Individual services' directives contain detailed instructions concerning introduction of privately owned firearms and ammunition into the United States.

4.3. Other Applicable Directives. Personnel must also comply with applicable service directives (reference paragraph 1.4.2.).

5. Sensitive Items.

5.1. Tobacco and Alcoholic Beverages:

5.1.1. The monthly tobacco ration for authorized persons 18 years of age or older is four cartons of cigarettes or 100 cigars or 16 pocket tins or 2 pounds of smoking tobacco. Other conditions and restrictions of entitlement are established in directives of the respective commanders in the U.K.

5.1.2. The monthly alcohol rationed allowance per authorized U.S. military personnel and civilian employees 18 years of age and over is:

5.1.2.1. Four bottles (1 liter or less) of rationed hard liquor per sponsor.

5.1.2.2. Two bottles of rationed hard liquor per spouse of sponsor, if residing with sponsor in U.K.

5.1.3. Wine and beer are not rationed, but may only be purchased by persons authorized ration privi1eges.

5.1.4. Dependents, who are not spouses of authorized persons, are not entitled to purchase alcohol at U.S. Force outlets.

5.2. Gasoline and Kerosene:

5.2.1. Tax-free gasoline is available in the U.K. for members of the U.S. Armed Forces, U.S. civilian employees of U.S. military departments, including non-appropriated fund activities, and U.S. civilians accompanying and serving exclusively with the U.S. Force.

Entitled U.S. personnel (and their spouses) may be issued with a 3AF Form 435 Driving/Fuel Permit which certifies their eligibility to purchase tax and duty-free motor fuel through Army Air Forces Exchange Service (AAFES) facilities. Military and civilian members of the U.S. Armed Forces, including AFRC and ANG personnel, on TDY in the U.K. for less than two weeks may present their military ID card and TDY orders verifying their TDY status in the U.K. as proof of eligibility.

5.2.2. Tax Free motor fuel for the duty driving requirements of the U.S. Force and its personnel is not rationed in the United Kingdom. United States Air Forces in Europe Instruction 51-712, Control Procedures For the Supply of Tax-Free Gasoline and Diesel Fuel in the United Kingdom, and United States Air Forces in Europe Instruction 51-720, Control Procedures For the Supply of Tax-Free Gasoline and Diesel Fuel From Off-Base Suppliers in the United Kingdom, contain definitions, limitations, prohibited activities and control procedures for tax-free motor fuel in the U.K. These instructions are applicable to all U.S. force personnel and others entitled to purchase tax-free motor fuel in the U.K.

6. Operation and Control of Motor Vehicles.

6.1. Concession Vehicles:

6.1.1. A concession vehicle is a vehicle imported free of import duty or purchased free of U.K. purchase tax. Single persons and married personnel not accompanied by dependents are authorized one concession vehicle. Married personnel accompanied by their dependents are entitled to two concession vehicles. While a maximum of two concession vehicles may be in the possession of an authorized person at one time if allowed above, no limit is placed on the number of concession vehicles which may be acquired in succession, provided the following requirements are met:

6.1.1.1. The application for a second or replacement vehicle must be approved by the sponsor's unit commander.

6.1.1.2. The purchaser agrees to keep possession of the second or replacement vehicle for a minimum of 6 months.

6.1.2. Disposal of a concession vehicle will be subject to any directives, which may be issued by the senior U.S. military commander of the owner's service in the U.K. Under no circumstances will a concession vehicle be abandoned.

6.1.3. A concession vehicle may be disposed of only by export; sale to an authorized person; scrapped after payment of U.K. customs and excise duty; scrapped as a total loss under a contract of insurance; accepted by a U.S. forces marketing and redistribution center if the vehicle has been in the U.K. for 2 years and owned by the current owner for 6 months; or sale on the open market after payment of all customs and excise duty. (If the title to a motor vehicle is transferred to an insurer because of a theft, liability for U.K. import duties and taxes may arise. Such potential liability should be included in the insurance coverage).

6.1.4. The 3AFI 31-204, Control of Concession Vehicles, contains more detailed procedures pertaining to concession vehicles.

6.2. Operation of Vehicles:

6.2.1. All personally owned motor vehicles operated by U.S. force personnel in the U.K. will be registered as required by British law. In addition, all concession vehicles will be registered with the appropriate U.S. military authority.

6.2.2. United Kingdom law requires vehicles to be covered by unlimited personal liability insurance (third party liability).

6.2.3. United Kingdom law requires the payment of an annual road tax and an annual inspection of all vehicles 3 years old or older. There is an initial 12-month exemption from the road tax on imported vehicles, and new vehicles of U.K. manufacture.

6.2.4. No person will display on his or her vehicles a service insignia, emblem, sticker, or plate that is not required by U.K. law, or authorized by U.S. military authority.

6.2.5. British law requires that vehicles manufactured in 1964 or thereafter will have permanently installed at least a safety harness-type seat belt for the driver and a safety harness-type seat belt for the front seat passenger. A safety harness-type seat belt is defined as a combination lap and shoulder belt or a diagonal shoulder belt for the driver and front seat passenger. A lap belt alone is insufficient.

6.2.6. Vehicles less than three years old at the time of importation must be submitted for a U.S. Force Single Vehicle Approval Test prior to registration on base and use on British roads. Vehicles over three years old must be submitted for a Ministry of Transport (MOT) Test prior to registration and use.

6.3. Drivers' Licenses:

6.3.1. Members of the U.S. force or civilian component and their dependents may operate a motor vehicle in the U.K. with a valid international or U.S. state driver's license or a U.S. forces driving permit. Members of the U.S. Air Force are required to obtain a USAFE-AFAFRICA Driving/Fuel Permit (USAFE Form 435) in accordance with USAFEI 51-712 and installation instructions. The USAFE-AFAFRICA Driving/Fuel Permit only authorizes driving the class of vehicle for which the member is qualified to drive in accordance with their U.S. license. Note: The USAFE-AFAFRICA Driving/Fuel Permit is not recognized as a valid U.K. driving permit for contractor personnel.

6.3.2. U.K. law provides that persons and visitors may drive in the U.K. with a valid U.S. license for a period of 12 months following the person's entry into the U.K. After the 12-month period, a U.K. license should be obtained.

6.4. Responsibilities of Command:

6.4.1. The senior U.S. commander of each military service in the U.K. is authorized to issue directives affecting military and civilian personnel under the senior U.S. commander's command or supervision with respect to, but not limited to, the following:

6.4.1.1. Issuance of U.S. Forces driving permits, which are recognized by the U.K. government.

6.4.1.2. Administratively suspending or revoking U.S. Forces driving permits according to applicable directives and international agreements.

6.4.1.3. Administratively suspending or revoking the privilege of operating motor vehicles on U.S. installations.

6.4.1.4. Requiring the annual inspection of motor vehicles operated on military installations.

6.4.1.5. Requiring the maintenance of minimum insurance coverage, both public liability and property damage, required by U.K. law on motor vehicles operated on military installations.

7. U. K. Law and International Agreements

7.1. Compliance with U.S. Forces Directives, U.K. Laws, and International Agreements:

7.1.1. In addition to U.S. personnel in the U.K. being subject to laws of the U.K. of general application, U.S. personnel also will comply with U.S. Forces directives and international agreements that affect them while in the U.K.

8. Immigration Status Reporting.

8.1. Requirements to report immigration status changes:

8.1.1. Effective 28 November 2015, eligible dependents of U.S. Force military members stationed in the U.K. are deemed exempt from U.K. immigration control. The exemption stems from the Memorandum of Understanding Between the Government of the United Kingdom of Great Britain and Northern Ireland and The Government of the United States of America concerning the Immigration Control of Dependents of Military Visiting Forces, dated 3 November 2015. The exemption only extends to dependent spouses, as well as dependent children who first arrive in the U.K. under the age of 21.

8.1.2. The U.S. Force is required to notify the U.K. Government when an eligible dependent first enters the U.K., permanently departs the U.K. or when the dependent is no longer entitled to the immigration exemption. The reasons for losing the exemption status include the following:

8.1.3. Divorce from the military sponsor;

8.1.3.1. The military sponsor is no longer assigned to duty in the U.K. and does not have a guaranteed follow-on assignment to the U.K.;

8.1.3.2. The military sponsor has died; or

8.1.3.3. The dependent child is no longer deemed a dependent under applicable U.S. DoD or Service regulations.

8.1.4. Responsibility to Report Status Changes (T-0):

8.1.4.1. Military personnel offices, such as Military Personnel Flights, Consolidated Support Squadrons, Orderly Rooms, etc., are required to report these above status changes.

8.1.4.2. The reports will be sent on a monthly basis to the following office: USAFE-AFAFRICA-U.K./JA. The office email address is **usafe-uk.ja@us.af.mil.**

8.1.4.3. The report will contain the full details of the eligible dependents, to include their full name and date of birth, along with the full name of the military sponsor. The report will also note the date and place of first entry or permanent departure of the dependent, as applicable.

8.1.4.4. If a dependent is no longer eligible for an exemption but has not departed the U.K., the servicing personnel office or owning unit of the military sponsor must notify USAFE-AFAFRICA-U.K./JA immediately. The full circumstances of a loss of status case must be provided to USAFE-AFARICA-U.K./JA, who is required to inform the U.K. immigration authorities.

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Attachment 1

GLOSSARY OF REFERENCES AND ACRONYMS

References

Agreement between the Parties to the North Atlantic Treaty Regarding the Status of Their Forces, signed 19 June 1951 (NATO Status of Forces Agreement). (4 U.S.T 1792; 199 UNTS 64) (BGB1 1961, II, 1138, 1190)

EUCOM Directive 45-7, Country Regulations, 4 January 2005, HQ U.S.EUCOM, Unit 30400, Box 1000, APO AE 09128. Last visited, 22 Feb 12, at **http://www.eucom.mil/publications/ed/ED45-7.PDF**

Gun Control Act of 1968 (Public Law 90-618), 18 U.S.C Section 921 et seq., Last visited, 22 Apr 16, at **https://www.law.cornell.edu/uscode/text/18/part-I/chapter-44**

DD Form 1434, United Kingdom (U.K.) Customs Declaration, May 2015, Last visited, 22 Apr 16, at **http://www.dtic.mil/whs/directives/forms/eforms/dd1434.pdf**

Adopted Forms

AF Form 847, Recommendation for Change of Publication

DD Form 1434, United Kingdom (U.K.) Customs Declaration

Abbreviations and Acronyms

MBF—military banking facility

MOU—Memorandum of Understanding

NATO—North Atlantic Treaty Organization

NATO SOFA—North Atlantic Treaty Organization Status of Forces Agreement

POV—Privately owned vehicle

SAO—Security Assistance Organization

UCMJ—Uniform Code of Military Justice

U.S.CR—United States Country Representative

U.S.EUCOM—United States European Command

U.K—United Kingdom